Harris County District Court

Cause No. 2024-CV-0017

Randall Duncan, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-10-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant answers Plaintiff's Original Petition by generally denying each and every allegation contained therein, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant denies that Plaintiff is entitled to recover any of the damages sought.

For further answer, and without assuming any burden of proof that the law places upon Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the collision at issue. Plaintiff entered the intersection against a traffic-control device or falied to yield the right of way, and under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and barred entirely if that percentage exceeds fifty percent.

Second, the collision and any claimed injuries were caused in whole or in part by the acts or omissions of persons or entities other than Defendant, for whom Defendant is not legally responsible. Defendant requests submisison of each such responsible third party's percentage of responsibility.

Third, Plaintiff failed to mitigate damages by not following reasonable medical advice and by incurring treatment charges that exceed the amounts reasonably necessary to treat the claimed injuries. Any recovery must be limited accordingly.